

25SMCV05989 25SMCV05989

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-19

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C08%2F19%2F2026

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Case Number: 25SMCV05989 Hearing Date: August 19, 2026 Dept: N

TENTATIVE RULING

Plaintiff/Cross-Defendant Jason A. Pollack's Motion to Compel Compliance with a Deposition Subpoena and for Monetary Sanctions Against Killian Vendler and California Arborists LLC for \$2,560.00 and or an Order Holding Them in Contempt of Court is DENIED.

Defendant/Cross-Complainant Michael A. Tansill's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,200, payable by Plaintiff/Cross-Defendant Jason A. Pollack to Defendant/Cross-Complainant Michael A. Tansill and defense counsel within thirty (30) days of entry of this order.

Plaintiff/Cross-Defendant Jason A. Pollack to give notice.

Plaintiff moves the Court for an order compelling nonparties Killian Vendler and California Arborists LLC to comply with a deposition subpoena seeking documents relating to an appraisal report, neighbor dispute report, other report, communication between them and Defendant/Cross-Complainant Michael A. Tansill ("Defendant"), and documents related thereto. (Mot., Pollack Decl. ¶ 2, Ex. A.) Plaintiff argues that Defendant identified Killian Vendler and California Arborists LLC as entities who had written an estimate or evaluation for the subject tree in the amount of \$17,137.00.

A party may obtain discovery pursuant to a deposition subpoena that commands the production of business records for copying. (Code Civ. Proc., §§ 2020.010, subd. (a)(1), 2020.410.) If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order compelling the nonparty to comply with the subpoena within 60 days after completion of the deposition record. (Code Civ. Proc., § 2025.480, subds. (a)-(b).) Where the deposition subpoena requires the production of documents, the Court may make an order directing compliance with the subpoena. (Code Civ. Proc., § 1987.1, subd. (a).)

The Court has reviewed the subject subpoena and finds that it is overly broad, as it seeks documents and communication from two entities that are similar to attorney work product, despite the fact that the entities simply prepared an estimate for Defendant. Plaintiff has made no attempt to limit the request, seeking the entities' entire file, without sufficient basis to do so. Accordingly, Plaintiff/Cross-Defendant Jason A. Pollack's Motion to Compel Compliance with a Deposition Subpoena and for Monetary Sanctions Against Killian Vendler and California Arborists LLC for \$2,560.00 and or an Order Holding Them in Contempt of Court is DENIED.

Defendant seeks monetary sanctions on the ground that Plaintiff has unsuccessfully made a motion to compel under Code of Civil Procedure section 2025.480, subdivision (j) ["The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one

subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust"].) The Court finds that monetary sanctions are proper but reduces the amount to \$1,200, representing three hours preparing the opposition and one hour appearing at the hearing on the motion, at the hourly rate of \$300 per hour. Thus, Defendant/Cross-Complainant Michael A. Tansill's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,200, payable by Plaintiff/Cross-Defendant Jason A. Pollack to Defendant/Cross-Complainant Michael A. Tansill and defense counsel within thirty (30) days of entry of this order.